

for their return. The King (out of the great care of their safety) referred their petition to the Lord Keeper Coventry, and that he, with the advice of the Judges, should consider by what way it might be done: and the eighteenth day of June we attended the Lord Keeper at Durham-House; and there upon conference and consideration of a former resolution which was at Reading in Mich. term last, before the said Lord Keeper (where were present all the Judges, besides my self). That these abusive habeas corpus were not lawful, and that the warden and marshal were then called and warned, that they should not suffer their prisoners to go into the country, as they had used to do, by colour of such writs: this which follows was subscribed.

We are of opinion, that the writ of habeas corpus is both ancient and legal; but as the writ doth not, so no rule can authorize the keeper of the prison to give liberty to his prisoner, by colour of such writ, but the same is an abuse against law, and an escape in the keeper, if he let the prisoner go by such writ.

We find, that neither in the twenty fourth year of Eliz. when the term was adjourned to Hertford. Nor in the 34th of Eliz. in which year it was adjourned to Hertford. Nor in the 35th of Eliz. in which year it was adjourned to St. Albans. Nor in 1 Jac. in which year the term was adjourned to Winchester. Nor in the first of King Charles, in which year it was adjourned to Reading. (In all which years there were great and dangerous infections of the plague) there was no such course to set prisoners out of prison by habeas corpus; but we find it a novelty begun of late years.

But we think, that if the danger of infection shall grow so great, as it shall be found necessary to provide for the safety of the prisoners (who may at all times provide for themselves by paying their debts, and yielding obedience to Justice) then a course may be taken that some certain house may be assigned for the warden of the Fleet, in some good Town, remote from the infection, and the like for the marshal of the Kings Bench, in some other town, where they may remove such prisoners as have been petitioners to His Majesty, and there keep them as prisoners, sub arcta & salva custodia, as they should be kept in their proper prisons, and not to be as house-keepers in their own houses; and by this means they will have the like to avoid the infection, as other subjects have, and not make the infection a cause to abuse their creditors, or delude the course of justice.

JOHN BRAMSTON	1.	HUMPH. DAVENPORT	6.
RICHARD HUTTON	2.	WILLIAM JONES	7.
GEORGE CROOKE	3.	THOMAS TREVOR	8.
GEORGE VERNON	4.	ROBERT BARKLEY	9.
FRANCIS CRAWLEY	5.	RICHARD WESTON	10.

To Sir JOHN BRAMSTON Knight, Lord Chief Justice of England.

My very good Lord,—I have acquainted His Majesty with your resolution, and your brethren, about writs of habeas corpus, His Majesty doth exceedingly approve the same, and hath commanded me to let you know, that His Majesty would not recede from that which you have certified, and prays you and the rest of my Lords the Judges, to observe it constantly, according to that resolution under your hands:—Your Lordship's assured,

THO. COVENTRY, C.S.

Hampton Court, 19 June, 1636.

[131] MICH. 14 CAR.

JUSTICE HUTTONS CASE *versus* HARISON.

Words against Justice Hutton. 1 Croke, 503.

Memorand. That 28 Aprilis, 14 Car. Justice Hutton argued in the Exchequer Chamber in the case adjourned thither, upon a scire facias by the King against Hampden for ship money, in which he was of opinion, that as well for the matter as for the form, upon divers exceptions to the pleading. Judgment shall be given against the King.

Afterwards, viz. 4 Maii, Thomas Harison Batchelor of Divinity, and Parson of Creak in Northamp. came to the Court of Common Bench (Justice Hutton, and

Justice Crawley then being there giving rules and orders) and said, I accuse Mr. Justice Hutton of high treason, for which he was committed to the custody of the warden of the Fleet by Justice Crawley; and after by the direction of the King, he was indicted in the Kings Bench, and convicted and fined five thousand pounds to the King: and Justice Hutton preferred his bill against him there, and recovered ten thousand pound damages.

LORD DIGBIES CASE.

Trial of a peer how, v. Devant, 116.

Memorand. That in the Parliament holden primo Car. It was resolved by the Judges upon conference concerning the Lord, Digby, that when any peer shall be proceeded against for treason, that ought to be by indictment, and that being done, then the King is to appoint a peer to be steward for the time, and then to proceed to arraign him, or otherwise to transmit this judgment by certiorari, to the Parliament, and there to proceed, vide 10 E. 4, 6, 1 H. 4, 1, vide Coke Lit. fol. 261 b. Or otherwise to prefer a bill in the Parliament, which ought to be passed by both houses, and then it is attainder by Parliament, and so it was done, 5 R. 2, 54.

But in this case, it being that part of the treason objected against him, was supposed to be done out le mere, and made treason by the Act of 3 Jac. cap. 4, that cannot be tried but by indictment, to be taken before the Justices of Assise, and Gaol-Delivery, where the party was taken, or before the Justices of the Kings Bench, any law, custome, statute, or usage to the contrary notwithstanding; and so it cannot be tried by the statute of 35 H. 8, cap. 2, in what place or shire that the Kings Bench shall be, for this statute had for this treason prescribed a special form of trial, and the place where he shall be taken shall be expounded, the place where he is imprisoned, as upon the Statute of Soldiers: and he which is charged to have two wives living, shall be tried in the place where he is taken, which is the place where he is imprisoned, vide 2 Inst. 49.

[132] TRIN. 12 CAR.

Queries concerning aliens.

Quæries upon the statutes of 1 R. 2, cap. 9, 1 H. 7, cap. 2, 14 H. 8, cap. 2, the decrees in the Star-Chamber made 20 H. 8, and confirmed 21 H. 8, cap. 16, 22 H. 8, cap. 8, 32 H. 8, 16, and other statutes concerning aliens, and the statute of 5 Eliz. cap. 4.

1. Whether the statute of 5 Eliz. cap. 4, doth repeal the former statutes concerning aliens, taking apprentices, journey-men, and servants.

2. Whether aliens made denizens, may use any handycraft within the realm, otherwise then as servants to the Kings subjects.

Memorand. That on the seventh day of July, we met at Serjeants Inne in Fleet-street (Mr. Attorney General being there) and we debated the matter, and upon perusal of the statute of 1 R. 3, cap. 9, and the other statutes: and upon some mis-recital of the Statute 1 R. 3, by the statute 32 H. 8, cap. 16. And upon differences of the printed statute from the Parliament roll, as was supposed, upon shewing of an old book of statutes, which was in French, and brought by my brother Crook; and upon the intricacy of the statute, we could not resolve on the sudden, upon these questions at this time, nor unless the Parliament roll might be seen.

But upon perusal of the statute of 5 Eliz. cap. 4, we all resolved and agreed.

That all aliens and denizens are restrained by the statute of 5 Eliz. cap. 4. That they may not use any handycraft mentioned in the said statute, unless they have served seven years as apprentices within this realm, according to the provision of this statute: this was set down in writing by Sir John Banks His Majesties Attorney General present: Sir John Bramston Chief Justice of England, Sir John Finch Chief Justice of the Common Bench, Sir Humphrey Davenport Chief Baron, Baron Denham, Justice Hutton, Justice Crook, Baron Trevor, Justice Crawley, and Baron Weston, the other Judges being absent, viz. Jones and Vernon.